

Amendment No. 1 to HB1676

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1739

House Bill No. 1676*

by deleting all language after the enacting clause and substituting instead:

SECTION 1. Tennessee Code Annotated, Section 64-2-101, is amended by deleting the section and substituting instead:

(a)

(1) There is created the North East Tennessee railroad authority in the counties of Anderson, Campbell, and Scott.

(2) The North East Tennessee railroad authority must also include the counties of Claiborne, Union, and Grainger upon all three (3) of those counties satisfying the requirements of § 64-2-102(b).

(b) This authority is intended to secure economic benefits to the counties that are members of the North East Tennessee railroad authority, by providing for the continuation of railroad service in those counties.

SECTION 2. Tennessee Code Annotated, Section 64-2-102, is amended by designating the existing language as subsection (a) and adding the following as a new subsection (b):

(b) The North East Tennessee railroad authority must include the counties of Claiborne, Union, and Grainger, and this part applies to those counties, when:

(1) Claiborne, Union, and Grainger counties are authorized, by a vote of two-thirds (2/3) of their respective governing bodies, to become members of the authority;

(2) Evidence of such authorization is proclaimed and countersigned by the presiding officer of each ratifying county certified by that presiding officer to the secretary of state; and

(3) The governing bodies of all three (3) counties have indicated their willingness to appropriate sufficient funds to support the administration of the authority along with the existing county members of the authority.

SECTION 3. Tennessee Code Annotated, Section 64-2-110, is amended by deleting the section and substituting instead:

All contracts of the authority must be entered into and executed in such manner as may be prescribed by statutes, regulations, and procedures governing contracting by county governments; provided, that a contract or acquisition by purchase of equipment, apparatus, materials, or supplies involving more than the applicable maximum threshold over which public advertising and sealed competitive bids or proposals are required for nonemergency, nonproprietary purchases as established pursuant to § 12-3-1212, or for construction, installation, repair, or improvement of the property or facilities involving more than such applicable maximum threshold must not be made until after the contract has been advertised for bids. Purchases of like items must be aggregated for the purposes of the bid threshold. Advertisement is not required when an emergency arises and requires immediate delivery of the supplies or performance of the service.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.